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“Officers without Soldiers”: Henry Sidgwick on Representative Government in the Shadow of Liberal Unionism

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This article provides an account of Henry Sidgwick’s theory of representative government as presented in The Elements of Politics. It explains the relationship between many of Sidgwick’s substantive commitments on the matter to the growing conflict within British liberalism that resulted in the foundation of the Liberal Unionist Party, the breakaway faction of liberals committed to keeping Ireland in the British Empire and under the rule of the Westminster parliament. Despite important internal divisions within Liberal Unionism, this article argues that Sidgwick presents something close to a Liberal Unionist political theory. His theory of representative government attempted to reconcile two competing ideals of liberal governance: the desire for intellectual and economic elites to govern without being too constrained by partisanship or the public on the one hand, and, on the other, the belief that the liberal cause required mass support to be successful. Managing these competing ideals would prove to be the main challenge for the Liberal Unionist Party.

This article provides an account of the core features of Henry Sidgwick’s theory of representative government as presented in his political magnum opus, *The Elements of Politics* (EP) (1891). It explains the relationship of many of his substantive commitments on the topic to his support for Liberal Unionism, the political movement of erstwhile Liberals committed to keeping Ireland in the British Empire and under the rule of the Westminster parliament. I argue that Sidgwick’s theory of representative government was an attempt to reconcile the ideals of representative politics that would later motivate many Liberal Unionists to defect from the Liberals: the desire for intellectual and economic elites to govern without being too constrained by partisanship or the public, and the belief that the Liberal cause required mass support to be successful. These competing ideals also presented the main challenge to the Liberal Unionist Party (LUP): the need for the intellectual and economic elites that dominated its ranks when it was created to find a sizable and lasting constituency amongst the mass of British voters. As a result, Sidgwick defended an expansive suffrage, a single-member-plurality (SMP) electoral scheme, and a range of policies for the appointment and conduct of

legislators. These views were meant to accomplish two things: (1) to argue for the need in advanced civilized states of political elites to deliberate with, and gain political support from, the masses, and (2) to offer institutional mechanisms that would help political elites accomplish this task.

This fundamental challenge faced by the LUP was the result of a crisis of liberalism that took shape beyond the confines of the debate over Home Rule. The Liberal Party faced growing tensions between the demands of popular legitimacy and a quasi-aristocratic notion of conscience-driven governance by the elite. Although they shared a commitment to enlightened rule, liberals disagreed about whether such rule was best achieved through a more rigid conformity to popular demands as understood by partisan leaders, or through deliberation between conscientious parliamentarians at a remove from popular pressures. Sidgwick's theory of representative government was intended to resolve these tensions by showing how a liberal political party that rejected Gladstonian tendencies toward centralized authority could still retain broad political legitimacy and a popular constituency. The LUP had its own internal divisions, but given its mostly anti-Gladstonian bent, Sidgwick's work ends up representing something close to a Liberal Unionist political theory. This article examines the unique way in which this political theory of Sidgwick's tried to resolve the tension within liberal ideas of representative government.

In spite of his status as a titan of moral philosophy, there is hardly any scholarly work on Sidgwick's political thought, let alone on his theory of representative government. What little there is tends to fall into one of two camps. First, there is a small but rich literature focused on the social and academic context in which Sidgwick composed his political works. It has focused on the influence of Sidgwick's academic and intellectual milieu on his method for studying politics and his general approach to expert political intervention.¹ As a result, however, it has tended to pass over Sidgwick's substantive views about political theory a bit quickly. Second, there is an equally small philosophical literature that has broached Sidgwick's political theory as part of a broader examination of his philosophy. Scholars writing in this vein have offered detailed and insightful expositions of Sidgwick's views on matters of substance, including his theory of representative government, though much of their focus has also been on method. Yet this has generally been done with little regard to the political context in which Sidgwick was writing, or to the relationship between his most pressing political commitments and his theory of representative government.² One exception to this general division of scholarly labor is Bart Schultz's excellent biography of Sidgwick, yet the discussion of Sidgwick's views on representative government in this book, though thorough and astute, makes no mention of his commitment to Liberal Unionism and leans heavily

¹Stefan Collini, Donald Winch, and John Burrow, *That Noble Science of Politics: A Study in Nineteenth-Century Intellectual History* (Cambridge, 1983), 277–308; Stefan Collini, "My Roles and Their Duties: Sidgwick as Philosopher, Professor and Public Moralist," in Ross Harrison, ed., *Proceedings of the British Academy 109: Henry Sidgwick* (Oxford, 2001), 9–50; William C. Lubenow, "Only Connect": *Learned Societies in Nineteenth-Century Britain* (Woodbridge, 2015), 123–54 *passim*.

²William C. Havard, *Henry Sidgwick and Later Utilitarian Political Philosophy* (Gainesville, 1959); Bernard Williams, "The Point of View of the Universe: Sidgwick and the Ambitions of Ethics," in Williams, *Making Sense of Humanity and Other Philosophical Papers, 1982–1993* (Cambridge, 1995), 153–71.

toward the purely analytical.³ This article aims to help fill the gap between contextual and substantive understandings of Sidgwick's political thought by offering a detailed analysis of one of his most important substantive interests, representative government, which draws upon his experience of the political conflict surrounding Home Rule for Ireland and his allegiance to the Liberal Unionist Party. As Stefan Collini has pointed out, opposition to Home Rule was Sidgwick's main political preoccupation in the last two decades of his life.⁴ It brought about a sea change in his political orientation and changed his sense of where he stood in the nexus of politics and public expertise. Once a Liberal, he found himself voting for Conservative governments from the 1880s until his death, and he became a committed supporter of the Liberal Unionist Party, attending its first conference in 1886. It is all the more surprising, then, that examinations of his substantive political theory have had almost nothing to say about the significance of Liberal Unionism in Sidgwick's work.

These two existing approaches to Sidgwick's politics leave our understanding of the relationship between his political context and his substantive views on politics incomplete. This article makes an effort to fill this gap by framing his theory of representative government through the moderate Liberal preoccupations with independence from party and the goods of mass input into politics that motivated his defection to the Liberal Unionists.⁵ These later underpinned his central preoccupation regarding the LUP's political fortunes, namely its lack of a real constituency amongst the lower classes.⁶ Upon attending the LUP's first party conference, Sidgwick wrote, "we were like a regiment of officers without common soldiers, and with little prospect of finding any 'rank and file.'" ⁷ This was a perceptive remark, and it presaged one of the many criticisms of the LUP made by its chief opponent, William Gladstone, who quipped, "They are officers without an army, they are clergymen without a church."⁸ It expressed an awareness of the main challenge of a breakaway party formed by a coalition of elites acting on the basis of strong convictions about matters of high national politics. As Ian Cawood points out, the strange predicament of the LUP was that it was a party whose "political culture ... emphasised an individual's higher duty to one's conscience,"

³Bart Schultz, *Henry Sidgwick: Eye of the Universe* (Cambridge, 2004), 580–612.

⁴Collini, "My Roles and Their Duties," 36.

⁵Gladstonian Liberals often insisted that a top-down party with a charismatic leader was required in an age of mass politics. See Eugenio Biagini, *Liberalism, Retrenchment and Reform: Popular Liberalism in the Age of Gladstone, 1860–1880* (Cambridge, 1992), 4, 416–25. The internal tensions between Whigs, Moderates, and Radicals in the Liberal Party regarding social policy in the years preceding the Home Rule crisis are well documented. Little attention has been paid, however, to the ways in which these tensions encouraged intellectuals such as Sidgwick to reimagine the goals and possibilities of representative government. D. A. Hamer, *Liberal Politics in the Age of Gladstone and Rosebery: A Study in Leadership and Policy* (Oxford, 1972); John Belchem, *Class, Party and the Political System in Britain, 1867–1914* (Oxford, 1990), 36–44.

⁶This article contests the claim that English elites were not concerned about class politics during this period. For this view see Peter Davis, "The Liberal Unionist Party and the Irish Policy of Lord Salisbury's Government, 1886–1892," *Historical Journal* 18 (1975), 85–104; John D. Fair, "From Liberal to Conservative: The Flight of the Liberal Unionists after 1886," *Victorian Studies* 29/2 (1986), 291–314.

⁷Henry Sidgwick, diary entry, in *Henry Sidgwick: A Memoir*, ed. Arthur Sidgwick and Eleanor Mildred Sidgwick (New York, 1906), 463.

⁸William Gladstone, speech at Limehouse, 15 Dec. 1888, quoted in Ian Cawood, *The Liberal Unionist Party: A History* (London, 2012), 30.

yet whose priority “if it was to survive beyond a single parliament would be to find an electorate willing to support it.”⁹ Sidgwick’s remark also helps us to make sense of the detailed arguments about representation in *EP*, which, I argue, were an attempt to explain how individual conscience and the independence of representatives could be made compatible with mass electoral politics.

This distinct political challenge emerged as Sidgwick was struggling to write his two major political works, *EP* and the series of lectures that were posthumously published as *The Development of European Polity (DEP)*. *EP* had a long gestation period, and was certainly begun long before the Home Rule crisis erupted in 1885, though it was not published until 1891. This leaves open the possibility that Sidgwick’s views on representative government were put to paper before the birth of the LUP and the attendant questions about its relationship to the British masses. On 21 February 1886, Sidgwick recorded his despair over the state of *EP*: “My political ideal is nearly written out—and lo! I begin to feel uncomfortable about it.” One can read this in one of two ways: either Sidgwick is indicating that *EP* is almost complete but that he is no longer as confident in its quality as before, or he is indicating that the part of *EP* that directly concerns his political ideal (“Freedom”) is done, but that he no longer feels as attached to it as a guide for evaluating political institutions and actions. There is little to decisively recommend one reading over another, but what this suggests is that Sidgwick is likely to have revised at least some parts of *EP* after his turn to Liberal Unionism, and that the book was still an incomplete project in his own mind at this time. More importantly, regardless of whether Sidgwick’s Liberal Unionism precedes his theory of representative government or vice versa, the relationship between them remains interesting and illuminating insofar as Sidgwick’s theory of representative government is an attempt to confront and resolve the tension in representative politics between the conscience of representatives and the need for parties to consolidate a national voting base through party-wide policy stances and dialogue across class lines. Perhaps Sidgwick’s work predates the LUP and serves as the most thoughtful and detailed expression of the political theory that motivated a major block within the LUP to defect from Gladstone’s Liberals. The reason why this was such a problem for the LUP was precisely because so many of its members had been motivated by a desire to assert their conscience against what they saw as Gladstone’s abdication of political responsibility in favor of following the demands of an inchoate mass of electors.¹⁰ Otherwise, it represents a sustained effort to address this problem in response to the LUP’s predicament. Furthermore, although Home Rule is not explicitly discussed in *EP*, it is brought up in a telling manner in *DEP*. There, in the context of a discussion of the pros and cons of various versions of federalism, during which Sidgwick repeats long passages from *EP* almost verbatim, he adds a mention of Home Rule as an example of an especially bad federal scheme, because it

⁹Cawood, *The Liberal Unionist Party*, 29, 30.

¹⁰This worry has often been associated with the Whigs specifically, but it was more widespread than that, and tracked not hostility to democracy so much as an understanding of representation as involving a substantial degree of independence from parties. On this worry among the Whigs see Gordon L. Goodman, “Liberal Unionism: The Revolt of the Whigs,” *Victorian Studies* 3/2 (1959), 173–89, at 180; Thomas William Heyck, “Home Rule, Radicalism, and the Liberal Party, 1886–1895,” *Journal of British Studies* 13/2 (1974), 66–91, at 69.

was not “consistent with the principles of representative government.”¹¹ The principles of representative government were at the front of Sidgwick’s mind when he thought about Home Rule and federalism more generally, and the fact that he was comfortable regurgitating so much material from *EP* in that same chapter of *DEP* suggests that he connected his views on federality and representation regarding Ireland to his views on these matters as they appeared in *EP*. This suggests that it is important to grapple with Sidgwick’s thinking on representation if we are to adequately understand his Liberal Unionism, and the kind of liberalism that he and other Unionists took themselves to be defending during this time.

EP’s attempt to offer a systematic treatment of the representative institutions most appropriate for an ideal state reflected his concerns about Liberalism’s fate in conditions of acute partisanship and politics detached from the masses, concerns which crystallized during the Home Rule crisis into an opposition to Gladstonian Liberalism. Sidgwick argues for a wide franchise on the ground that this is necessary not only for government to be legitimate, but also to ensure sufficient epistemic input for legislators and the executive in the context of an increasingly complex society. In order for elites to have their rule accepted by the many, they must earn a democratic mandate. In order for elites to rule well, they must come to understand the complex balance of interests and needs that make up their society, and the requirement to secure a broad political constituency is the best mechanism for ensuring that this happens. Sidgwick’s claim that civilized societies have become too complex to be ruled by insular elites is laid out in *DEP*, the lectures for which he was composing as he wrote *EP*. In addition to his claims about the importance of a wide franchise, Sidgwick makes a number of institutional proposals meant to motivate and facilitate elite engagement with the masses and the creation of broad electoral constituencies whilst simultaneously preserving the political dominance of the classes that made up the LUP’s core membership: the wealthy and intellectual elites. To that end, Sidgwick defends SMP against proportional representation (PR) as the most desirable representative scheme, criticizes excessive party discipline, and advocates for legislative positions being unpaid and for civil servants being selected via competitive examination.

These proposals have often been taken as evidence of Sidgwick’s political-philosophical conservatism in *EP*: here was a big book on the ideal polity that happened to envision a state nearly indistinguishable from the Britain of Sidgwick’s day and the constitutional order that underpinned it.¹² Yet what Sidgwick was suggesting was a fundamental change in how a substantial portion of Britain’s political elite actually related to the democratic institutions that they ostensibly dominated. If things like SMP and civil service exams were status quo institutions, they also represented crucial arenas in which the LUP needed to assert itself to block Home Rule. In some of these arenas,

¹¹Henry Sidgwick, *The Development of European Polity* (hereafter *DEP*) (London, 1903), 428. Sidgwick is comparing the Home Rule scheme negatively to Hungarian “federality,” which he already seems to have regarded as too complicated for a parliamentary system.

¹²D. G. Ritchie, “Review of Sidgwick’s ‘Elements of Politics,’” *International Journal of Ethics* 2 (1891), 254–7. This view is endorsed (in different ways) in Havard, *Henry Sidgwick*, 150–51; and in Collini, Winch, and Burrow, *That Noble Science of Politics*, 291–2.

Sidgwick's proposals echo the party line, but often they represent an attempt to critique and address the failings of liberal theories of representation that would not only drive the split within the Liberal camp over Home Rule, but also later constitute the LUP's core weaknesses. His account of the value of these familiar institutions therefore reflects a sense of political ambition that is not usually attributed to him. His worry that political success would be difficult for those who conceive of themselves as above the local rough-and-tumble that established political institutions required would prove prophetic for the LUP. Sidgwick's sense of urgency regarding this problem is a notable demonstration of the way in which his conservatism masked a surprisingly vigorous liberal reformism.

The first section explains Sidgwick's Liberal Unionism and his understanding of civilized society and its challenges. The second section discusses Sidgwick's treatment of federalism in *EP* and *DEP*, and its relation to his Liberal Unionism. The third section offers an overview of Sidgwick's views on the franchise and connects them to his attempt to explain the necessity for political elites to create broad constituencies. The fourth section turns to Sidgwick's views on elections, representation and parties. It shows how Sidgwick targeted his institutional proposals to achieve his aim of incentivizing and creating opportunities for elites to form the kind of electoral constituency he envisioned without sacrificing their hold on the main levers of political power. Finally, the fifth section explains how unelected offices, namely the House of Lords, relate to his broader political concerns and his involvement with the LUP. Section 6 concludes.

Liberal Unionism and “political civilization” as standard for government

Sidgwick's Liberal Unionism was motivated by a number of political commitments common to that party, although some of his views were more distinctive. His worries about the ideological and political failures of Gladstone's Liberals crystallized around his opposition to Home Rule and combined with his understanding of the distinct challenges of governing complex modern societies that shaped his theory of representative government.

Sidgwick voted Liberal for the last time in the election of 1885, though even then it was only “after some hesitation.”¹³ He had earlier expressed worries about a split in the Liberal Party between moderate landlords and the Radicals, and was usually sympathetic to the moderate faction.¹⁴ Though Sidgwick was never fully a Unionist in the Whig–Liberal vein of Lord Hartington, he was wary of Radicals such as Chamberlain (later a prominent Liberal Unionist himself).¹⁵ Later, Sidgwick would follow Hartington in favoring cooperation with Conservatives on issues beyond preserving the Union once the Liberal Unionists had become a parliamentary faction.¹⁶ Ultimately, Sidgwick voted Liberal because he thought they were better equipped

¹³Sidgwick, *Memoir*, 430.

¹⁴*Ibid.*, 425–6, 418.

¹⁵*Ibid.*, 418, 426.

¹⁶T. A. Jenkins, “Hartington, Chamberlain and the Unionist Alliance, 1886–1895,” *Parliamentary History* 11/1 (1992), 108–38, at 112; Sidgwick, *Memoir*, 452, 467–8.

to decisively handle the Irish issue, and because he supported disestablishment (a minority position among Liberal Unionists, especially those not aligned with Chamberlain).¹⁷ Like many other Liberals, Sidgwick interpreted Gladstone's 1886 Home Rule Bill, which would have created an independent Irish Parliament in Dublin with control over Ireland's domestic affairs, as a betrayal of liberal principles. First, it was "a pusillanimous surrender" of a vulnerable minority (Irish Protestants), who were entitled to the protection of Parliament and its laws, to an unrestrained and illiberal Catholic majority.¹⁸ Second, it was an abandonment of the political principle of order, understood as fair government under the rule of law, because it would leave Ireland in the hands of seditionists who lacked respect for the rule of law.¹⁹ He was troubled by the political violence of Irish nationalists, referring to the followers of Charles Parnell, the Irish nationalist leader, as "accomplices of *dynamitards*."²⁰ He supported the maintenance of "coercion" in Ireland in the form of the Crimes Act—a bill which allowed the government to deny those suspected of certain crimes associated with rebellion a jury trial, placing them before a special tribunal instead—as the only way to maintain order and avoid granting Home Rule.²¹ These first two worries reflect the general Liberal Unionist concern that agrarian violence heralded "the emergence of tyrannical majoritarianism" in Ireland.²² Third, Sidgwick took Home Rule to be a capitulation of reason and government expertise to nationalist sentimentality and incompetence.²³ Sidgwick thought it crucial to separate the agrarian issues regarding Ireland from Irish nationalism. He imagined that if "a formal coalition of the English parties" were formed "on the basis of a determination to hold Ireland firmly," then "order might be re-established" and "the agrarian element of the sedition might be gradually separated from the political" movement demanding national independence for Ireland.²⁴ Sidgwick was not alone in denying that Irish nationalist grievances were anything more than a veil of opportunistic sentimentality thrown over the essentially economic-policy challenges of managing landlord–tenant relations in Ireland.²⁵ Indeed, one of the central Liberal Unionist grievances was that Gladstone had surrendered reasoned governance to the mere sentimentality of illiberal lawbreakers. James Fitzjames Stephen, another Liberal

¹⁷Sidgwick, *Memoir*, 430; William C. Lubenow, *Liberal Intellectuals and Public Culture in Modern Britain, 1814–1915: Making Words Flesh* (Woodbridge, 2010), 202.

¹⁸Sidgwick, *Memoir*, 434, 448.

¹⁹*Ibid.*, 438, 443, 473, 480.

²⁰*Ibid.*, 480.

²¹*Ibid.*, 445; Jonathan Parry, *The Rise and Fall of Liberal Government in Victorian Britain* (New Haven, 1993), 294. Sidgwick did this somewhat bitterly, and blamed Gladstone's government for forcing the choice between coercion and Home Rule.

²²Lubenow, *Liberal Intellectuals and Public Culture in Modern Britain*, 191.

²³At the same time, Liberal Unionism itself both relied on and helped bring about nationalist movements and sentiments in different parts of Britain. See Michael Hurst, *Joseph Chamberlain and Liberal Reunion: The Round Table Conference of 1887* (London, 1967), 84; Naomi Lloyd-Jones, "Scottish Nationalism and the Home Rule Crisis, c.1886–1893," *English Historical Review* 129/593 (2014), 862–87.

²⁴Sidgwick, *Memoir*, 438.

²⁵Parry, *The Rise and Fall of Liberal Government in Victorian Britain*, 295; George Goschen in *Hansard Parliamentary Debates* 304 (April 1886), 1460–61.

Unionist, saw himself as resisting the “gush of sentimentality.”²⁶ Joseph Chamberlain similarly thought that Parnell had created a set of “sentimental” grievances to replace previous economic ones.²⁷ These concerns were common among Liberal Unionists, especially those in the intellectual classes. A. V. Dicey had pressed particularly strongly on Gladstone’s abandonment of the rule of law and his kowtowing to nationalist sentimentalism.²⁸ James Bryce joined Sidgwick in thinking that coercion was the only alternative to Home Rule.²⁹

As William Lubenow has argued, Liberal Unionists shared a broad worry about political violence and resistance to law, if not outright revolution.³⁰ Ian Cawood notes, however, that Liberal Unionists also shared a deep preoccupation with what they saw as the deterioration of representative government under the new system of party discipline and strict partisanship.³¹ Many Liberal Unionists wished to restore the independence of MPs from partisan structures and restore a climate of cross-party collaboration. Sidgwick thought that the Home Rule crisis had emphasized serious pre-existing problems with the British representative system. He blamed the “national disaster” of the Home Rule crisis not just on “Liberal principles” but also on “party organization.”³² The two-party system and the rigidity of top-down party structures and party discipline were as much to blame as Gladstonian moral wretchedness.³³ This “system of alternating parties” stands in opposition to “the influence of enlightened and rational opinion” during “crises like this.”³⁴ The inability of third parties to govern independently had the ironic consequence of giving such parties, in this case the Irish nationalists, a decisive say over who governed, since they could enter into a coalition with either the Liberals or the Conservatives.³⁵ Yet, just a few months later, he would voice the seemingly opposite worry about the effects of party structures on coalition governments. On the last day of 1886, he wrote in his diary, “It seems clear that coalition [between Liberal Unionists and Tories] is not to be. The rank and file of both parties object. My forecast of the future is now of the gloomiest kind. I think party organisation in England is too rigid a thing to be broken up, and that ‘Liberal Unionism’ will be broken against it at the next election.”³⁶

If coalitions had been too easy a path to influence for the Irish nationalists, they were now too hard for the Liberal Unionists. The rigid separation of parties, which were organized as top-down, disciplined political units, was incapable of accommodating a

²⁶ James Fitzjames Stephen to Lady Grant Duff, 4 March 1886, Stephen Papers, Cambridge University Library, Add. 7349/13/69.

²⁷ Joseph Chamberlain to John Morley, 18 Oct. 1881, quoted in Eugenio Biagini, *British Democracy and Irish Nationalism, 1876–1906* (Cambridge, 2007), 232.

²⁸ Cawood, *The Liberal Unionist Party*, 103–4.

²⁹ Sidgwick, *Memoir*, 447.

³⁰ Lubenow, *Liberal Intellectuals and Public Culture in Modern Britain*, 211.

³¹ Cawood, *The Liberal Unionist Party*, 112–14.

³² Sidgwick, *Memoir*, 439.

³³ *Ibid.*, 439; Henry Sidgwick, *The Elements of Politics* (hereafter *EP*) (London, 1891), 569–74.

³⁴ Sidgwick, *Memoir*, 442.

³⁵ *Ibid.*, 439. See also Parry, *The Rise and Fall of Liberal Government in Victorian Britain*, 295.

³⁶ Sidgwick, *Memoir*, 464.

Unionist coalition that crossed Liberal–Tory lines. This was in part the result of the different hopes and uses that nationalists and Unionists had for coalition, and in part (though Sidgwick would never have admitted it) a testament to Parnell's political skill. Whatever the differences between Parnell's coalitions and the Liberal Unionist predicament, Sidgwick saw the Home Rule crisis as revealing the breakdown in representative government that had been brought about by the rise of party discipline and strong partisanship in the previous two decades.³⁷

Sidgwick disliked the partisanship of his era. Like many other Liberal Unionists, his attachment to a party that was never quite able to carve out a stable place for itself with or between Liberals and Tories prompted him to reflect on how representative government ought to be designed to ensure good government and the preservation of an order of rights under law. Yet the Liberal Unionists were themselves a party, and, as Sidgwick's observation about their lack of a constituency suggests, he recognized the need for the LUP to develop a stable and reliable voter base.³⁸ These dual concerns are also found in his theory of representative government, which was an attempt to explain how voting and representation could be so structured as to preserve parties and partisan voting bases, whilst also returning to a less disciplined and rigid party structure. His goal was to justify and motivate the creation of a party structure that gave broad independence to representatives, but incentivized them to actively cultivate a voting base in their constituencies.

Sidgwick's attempt to theorize the representative relation anticipated (or perhaps reflected) Liberal Unionist attempts to roll back party discipline and rethink political representation more generally, some of which Sidgwick disapproved of. Albert Grey, John Lubbock, Parker Smith, and Frederick Pollock all turned to PR schemes to solve what they perceived to be the problems with the rise of democracy in Britain.³⁹ Others reacted to party discipline by reasserting the value of personal conscience above even democratic accountability. Andrew Reid, for instance, responded to Gladstonian appeals to Irish popular will by maintaining that "love of his conscience more than the approval of the conscience of the people" was the Liberal's trademark.⁴⁰ *EP* contains a rebuke of these trends, which Sidgwick saw as dead ends, as well as a criticism of the party system that would eventually allow Gladstone to betray Liberal principles. As we shall see, Sidgwick did not think that PR would fix representative government, and he was wary of appeals to conscience as a way for representatives to reject democratic accountability, preferring instead to encourage representatives to enlighten their constituents (and to learn from them) rather than to simply assert a right of conscience

³⁷ On party discipline see Angus Hawkins, *Victorian Political Culture: "Habits of Heart and Mind"* (Oxford, 2015), 273–315.

³⁸ The Reform Acts of 1884 and 1885 drastically altered the constituency bases of all Liberals, leaving Liberal Unionists representing populations that were less demographically different from Conservative constituencies than previously. Hugh W. Stephens, "The changing Contexts of British Politics in the 1880s: The Reform Acts and the Formation of the Liberal Unionist Party," *Social Science History* 1/4 (1977), 486–501.

³⁹ Lubenow, *Liberal Intellectuals and Public Culture in Modern Britain*, 215.

⁴⁰ Andrew Reid, *Why I Am a Liberal* (New York, 1885), 114, quoted in Cawood, *The Liberal Unionist Party*, 113. This attitude was common among Whigs; see Heyck, "Home Rule, Radicalism, and the Liberal Party," 69.

against them. In these ways, Sidgwick's thought captures the insufficiency of some major tendencies in the political thought of the LUP that would come back to haunt the party.

Sidgwick's theory of representative government should also be understood in light of his theory of the modern state, the state under conditions of "political civilization," that he was elaborating for *DEP*. His theory of the state reflects the concerns he had about Home Rule, namely his commitment to the rule of law, to order as opposed to arbitrariness, and to reasoned, competent government.⁴¹ Political civilization was defined as the constitutional government of a state. Constitutional government was opposed to arbitrary rule. Specifically, Sidgwick claimed that constitutional governments were governments where the rulers were bound by the law, and thus not free to rule as they pleased.⁴² He argued that sovereignty, properly understood, does not place the sovereign beyond or above the law that they create. Societies that have truly mastered the problem of political order confronted by theorists of the social contract do not do so by submitting to a ruler who is outside the social contract, as is the case with the Hobbesian sovereign.⁴³ This distinction between law and arbitrary will was important in Mill's account of civilization as well, but Mill places the transition from arbitrary power to the rule of law much earlier in the development of civilization. On his view, government by law is one of the preconditions for civilization, not a sufficient condition for its realization.⁴⁴ Sidgwick, for his part, thought this to be the most important and difficult innovation in the development of states.

For Sidgwick, the most advanced and meaningful stage of civilization is explicitly defined as a form of political rule. He claims that an ideal society is one that is ruled in such a way that its constituent parts act in concert as though they were being directed by a rational unitary will.⁴⁵ Sidgwick thought that a "unity of resolution and action" was necessary for the efficient performance of governmental functions.⁴⁶ Governments that were internally divided in their aims and purpose would act inefficiently and impose unnecessary costs on citizens, as well as compromising social unity. Social unity was an overarching concern of Sidgwick's, one that he expressed in his conception of the common interest and of the value of a cultural elite.⁴⁷ For now, we will briefly examine how Sidgwick thinks such unity can be achieved in actually existing societies.

Sidgwick's account of the development of social unity is intertwined with his account of the development of social complexity. Over time, maintaining the ideal of social unity required the most economically advanced societies to adopt a constitutional monarchy with representative government. This is in part because, in *DEP*,

⁴¹As with *EP*, some of these concerns likely pre-date the Home Rule crisis, and point to the fault lines in liberalism that led to the creation of the LUP. Home Rule is, however, explicitly mentioned in *DEP*, so it makes sense to say that at least parts of it were written in response to the Home Rule debate.

⁴²Sidgwick, *DEP*, 10.

⁴³*Ibid.*, 11, 355–6.

⁴⁴John Stuart Mill, *The Collected Works of John Stuart Mill*, ed. J. M. Robson, 33 vols. (Toronto, 1963–91), 19: 395, 8: 920. Mill's works will be cited hereafter as "CW" followed by the volume number.

⁴⁵Sidgwick, *DEP*, 10.

⁴⁶*Ibid.*, 11.

⁴⁷Havard, *Henry Sidgwick*, 140–42.

Sidgwick suggests that this is an empirical ideal. Political civilization was characterized by more complex government delivering unified outcomes as though it were governed by an all-powerful monarch.⁴⁸ Constitutional government is a “method—at once more artificial and more orderly—of avoiding the evils of arbitrary rule; while at the same time endeavouring to maintain the unity of resolution and action which is necessary for the efficient performance of governmental functions.”⁴⁹

Federalism and Home Rule

Irish Home Rule essentially entailed transforming the Union into a federal state, with Ireland as a federal substate with its own parliament for most domestic matters and the rest of the UK represented at Westminster. If we read *EP* as a Liberal Unionist text, we might therefore expect it to be critical of federalism, yet Sidgwick’s treatment of federal states is generally positive, and he even suggests in *DEP* that the future will bring a further “development of federality.”⁵⁰ I do not think that Sidgwick’s endorsement of federalism in *EP* and *DEP* is at odds with his Liberal Unionism, indeed I think that parts of his discussion of federalism help explain why he thinks that Irish Home Rule goes against what he took to be the attractive features of federalism.

Sidgwick identified four principal advantages to federalism, though only two apply to cases not involving two formerly independent states forming a federation.⁵¹ (1) federalism allows polities to achieve “the maximum of liberty compatible with order,” because it narrows the power of the central state and potentially affords minorities their own substate governments;⁵² (2) federal polities tend to have durable constitutions, because federalism generally requires approval of constitutional changes by most federal subunits, as well as by the central government, thereby making it harder to change the constitution.⁵³ At the same time, Sidgwick identifies three major worries about federal and other “composite” states (such as states with imperial dependencies or settler colonies). He does not find these worries decisive in general, but rather uses them to delineate the boundary between good and bad federal arrangements.

The first of these worries is about federal polities whose component units cannot be understood as (roughly) equal in population, economic power or degree of civilization. Sidgwick worried that such unequal arrangements would require one of two key principles of federalism to be violated: that the substate units be treated as equals within the state in relevant ways, and that representative government remain majoritarian.⁵⁴ As Sidgwick put it, “where the part-states are so few or so unequal in size that a single part, if represented in proportion to its numbers, would tend to preponderate in the central legislature,” then “the smaller part-states incur a certain danger of becoming

⁴⁸Sidgwick, *DEP*, 10–11.

⁴⁹*Ibid.*, 11.

⁵⁰*Ibid.*, 439.

⁵¹See Sidgwick, *EP*, 516–17; Sidgwick, *DEP*, 436, for the advantages of states merging into a federation.

⁵²Sidgwick, *EP*, 517–18. “Local self-government,” he claims, reduces “the danger of a ‘tyranny of the majority.’” Sidgwick, *DEP*, 438.

⁵³In a Benthamite vein, Sidgwick admits that this can have drawbacks. See Sidgwick, *EP*, 510–12.

⁵⁴This second principle is not specific to federal states, but certainly applied to them.

practically dependencies of the larger—so far as the action of the central government is concerned.”⁵⁵ The only alternative in such a scenario would be to provide for the unequal representation of different federal subunits in order to give each subunit an equal number of votes in at least one chamber of the legislature. It is “improbable,” Sidgwick notes, that such unequal representation would be “accepted by a large part-state.”⁵⁶ As a result, federal states with few substate units “should be not very unequal in size: and the fewer they are, the smaller is the inequality that would be dangerous.”⁵⁷ One “special problem” with federalism, for Sidgwick, was therefore that such inequalities would make it impossible to “provide adequate security” for the legislative interests of the part-states, undermining the value of representative government.⁵⁸ As a result, Sidgwick describes “approximate equality of political position among the parts” as one of the “essential characteristics of the modern idea of the federal state.”⁵⁹ The second worry is straightforward: by dividing loyalties within a state, federal arrangements increased the danger of local governments being “effectively used as centres of local resistance to the national will.”⁶⁰ As with the first worry, the concern was that a minority might use its control over a federal subunit to undermine the principle of majority rule in the state as a whole.

Third, Sidgwick thought that federalism’s most commendable feature was its ability to bring together states that might not otherwise form a single political unit. His ideal was a cosmopolitan world-state, and he thought that federalism would likely serve as a transitional phase in humanity’s progress toward that ideal.⁶¹ Federalism is about bringing hitherto foreign states together into an ever closer union, not about breaking up existing unions between neighbouring civilized states.⁶² Equally important for our purposes is Sidgwick’s opposition to secession, due to the suffering it would “impose on any loyalist minority in the seceding territory.”⁶³ This very concern, as we have seen, was one of the reasons why Sidgwick opposed Home Rule.

Indeed, there is much in *EP* that points to Sidgwick disapproving of a scheme like Irish Home Rule, especially when read in the context of his views on Irish nationalism. Home Rule would not maximize freedom (advantage 1) in Ireland because Sidgwick judged the Irish nationalists to be illiberal, persecutory and unfit for the task of governing such a complex and challenged society as Ireland. At the same time, we can see in *EP* clear indications of why advantage 2 would not apply to Ireland, and why his two worries would. Sidgwick’s worry about federalism being used to decentralize existing states rather than unify independent ones was clearly at play in his reaction to Home

⁵⁵Sidgwick, *EP*, 516.

⁵⁶*Ibid.*

⁵⁷*Ibid.*

⁵⁸*Ibid.*, 515.

⁵⁹Sidgwick, *DEP*, 434.

⁶⁰Sidgwick, *EP*, 518.

⁶¹*Ibid.*, 209, 519; Sidgwick, *DEP*, 433.

⁶²Sidgwick inherited this assumption from his friend J. R. Seeley, *The Expansion of England: Two Courses of Lectures* (1883) (London, 1925).

⁶³Sidgwick, *EP*, 218–20. See also David Miller, “The Political Philosophy of Henry Sidgwick,” *Utilitas* 32 (2020), 261–75, at 268.

Rule. This is especially salient since Sidgwick believed that, in the specific case of Home Rule, secession was the most likely ultimate outcome.

Sidgwick's concern about federalism undermining majority rule was also apparent in the case of Ireland. Home Rule would not only have established a binary federal division between Ireland and the rest of the UK; it would also have removed Irish MPs from Westminster altogether. This situation, on Sidgwick's understanding of federalism, would either have reduced Ireland to the status of a dependency on all matters under the purview of the central government (a situation that would surely fan secessionist flames), or Parliament would have to somehow represent the legislative interests of Ireland and balance them with those of the rest of the Union, which would have violated the principle of majority rule.⁶⁴ If the UK were to be transformed into a federal state consisting of only two part-states, then those part-states would have to be almost exactly equal to one another in population and economic power in order for federal arrangements to treat each part fairly. This was patently not the case when it came to Ireland and the rest of the Union. For the same reason, advantage 2 was off the table. Constitutional stability was only possible in a federation if the legislative relations between the parts and the whole were stable and widely accepted.⁶⁵ This would not be the case in a federation composed of such unequal parts.⁶⁶

Sidgwick on the value of expansive suffrage

Sidgwick was generally more egalitarian than his utilitarian predecessors, and less disposed to regard education as an important political qualification than most nonsocialist Victorians. Although he has been described as seeking to impose "severe limits on the franchise," Sidgwick's conception of political civilization led him to see British society as far too complex to be ruled by an elite class epistemically isolated from the masses.⁶⁷ Instead, he saw the social conditions of Britain as offering a unique opportunity to meld expert rule and popular participation via public debate into a political structure that reliably generated the outcomes preferred by experts without excluding or subordinating the masses. This was valuable not just because it achieved a kind of expert rule, but also because it secured the independent desideratum of political legitimacy.

Sidgwick was interested in two broad questions regarding voters: (1) how the suffrage should be distributed, and (2) how those with the suffrage should be organized when it came time to elect representatives.

Regarding the extent of the suffrage, Sidgwick understood himself to be occupying a middle position between Bentham's universal-suffrage utilitarianism and the arguments for a limited and unequal franchise made by subsequent generations of utilitarians, especially J. S. Mill. In an essay published in the *Fortnightly Review* in 1877,

⁶⁴Joseph Chamberlain made the same argument in *The Baptist*, 25 Feb. 1887, quoted in Heyck, "Home Rule, Radicalism, and the Liberal Party," 66.

⁶⁵Sidgwick, *EP*, 511–12.

⁶⁶Several of these themes were later taken up by A. V. Dicey to argue against the Home Rule Bill of 1893. A. V. Dicey, *A Leap in the Dark, or, Our New Constitution* (London, 1893).

⁶⁷Schultz, *Henry Sidgwick*, 585.

Sidgwick offered a summary of the achievements and significance of Jeremy Bentham. There, Sidgwick claimed that Bentham had argued that democracy was “absolutely desirable” based on the psychological assumption of “universal self-preference,” which stated that “our common interests are most likely to be well looked after by managers whom we can dismiss,” because each person knows and wishes to advance their own best interests.⁶⁸ A utilitarian government cannot be constitutionally limited in the exercise of its power a priori (to do so might prevent government from enacting laws that create the greatest happiness for the greatest number), so citizen control over who is in government is required to ensure that those in power do not neglect the interests of the governed. Furthermore, because the exclusion of any one group within the population, except for children and the “insane,” would risk those groups having their interests ignored, suffrage must be universal.⁶⁹ Sidgwick thought that this defense of universal suffrage was vulnerable to the objection that in many people interests did not actually manifest or function in the way Bentham thought: not everyone knows their own interests, has distinct interests, or has distinct interests that ought to be represented if the goal is to advance the common interest. Once these empirical difficulties are admitted, “the descent from the position of Bentham ... to John Stuart Mill’s relative and qualified assertion of its [democracy’s] desirability, is logically inevitable.”⁷⁰

Sidgwick was not, therefore, a defender of universal suffrage, at least not in any straightforward way. Yet his gloss of Mill’s suspicion of democracy as “logically inevitable” belied his view that Mill had gone much too far in his suggestions for limiting and unequally distributing the franchise. Indeed, when he came to write his chapter on “The Legislature” in *EP*, he gives a sympathetic but ultimately critical summary of Mill’s proposed exclusions and electoral disabilities.⁷¹ Sidgwick begins by endorsing two general grounds for universal suffrage: the Benthamite worry that disenfranchised groups would have their interests neglected *pro tanto*, and the educative benefits of the suffrage. Regarding the latter, Sidgwick claims that these benefits are moral, rather than intellectual. Participating in politics is unlikely to generate great personal or intellectual improvement, because many people will be insufficiently educated to benefit from the intellectual challenges of politics in the first place. Nonetheless, democracy “will tend to develop patriotism and public spirit.”⁷² Sidgwick did not think, however, that either of these grounds decisively supported universal suffrage in all times and places. He offered two general reasons for limiting the franchise: “(1) that the class in question will not suffer by exclusion because its interests will be adequately cared for by the representatives of those included, or (2) that it is likely to make a dangerously bad use of the vote.”⁷³ Even at this level of abstraction, it is clear that Sidgwick’s possible reasons for limiting the franchise were much narrower than Mill’s. Specifically, Sidgwick

⁶⁸ Henry Sidgwick, “Bentham and Benthamism in Politics and Ethics,” in Sidgwick, *Miscellaneous Essays and Addresses*, ed. E. M. Sidgwick (London, 1904), 135–69, at 161.

⁶⁹ *Ibid.*, 159–61.

⁷⁰ *Ibid.*, 161.

⁷¹ Mill advocated for a weighted franchise based on education or, failing that, occupation. He also argued against enfranchising those too poor to pay property or income taxes. Mill, *CW*, 19: 353, 470–72, 474.

⁷² Sidgwick, *EP*, 363.

⁷³ *Ibid.*, 364.

never contemplated limiting or weighting the franchise as a kind of just sociocultural tribute to the more intelligent.⁷⁴ He was equally uninterested in the supposed educative benefits of a limited or weighted franchise. Finally, he did not think that Mill's worry about the swamping of the upper classes in Parliament could justify limitations on the franchise.⁷⁵ These narrower general reasons for an unequal or exclusionary franchise naturally led Sidgwick to conclude that Mill had been too expansive in his own proposed electoral exclusions and hierarchies. More surprising still is the fact that Sidgwick argued that reason 1 for limiting the franchise "only neutralizes a part of the grounds for universalizing the suffrage; it does not affect the 'educational' grounds."⁷⁶ In other words, only those likely to abuse their vote in a socially destructive fashion could be permissibly excluded from the franchise.

Before examining the specific differences between Sidgwick and Mill on the weighting of the franchise, we should turn to Sidgwick's views on the universal franchise, which were closer to Mill's while still exhibiting a few notable differences. Mill and Sidgwick agreed that the destitute should be disenfranchised on very similar grounds: both thought that those who were entirely dependent on charity or the public purse would, to use Sidgwick's criterion, "make a dangerously bad use of the vote" because they had nothing at stake in the economy or the public funds. Sidgwick also makes a great fuss of showing deference to Millian reasons for excluding the poor and the uneducated, but he ultimately rejects these exclusions.⁷⁷

One area where Sidgwick was notably less radical than Mill was women's suffrage. Although Sidgwick supported women's suffrage, he never straightforwardly declared, as Mill did, that women should be enfranchised on the same terms as men. Sidgwick thought that "unmarried women and widows" were being unfairly denied the franchise "on the score of [their] sex alone."⁷⁸ When it came to married women, however, he granted the plausibility of the view that they need not be enfranchised since they would likely defer to their husbands' instructions when they voted, or be intimidated into doing so, and since their interests would be protected by their husband's vote anyway.⁷⁹ Sidgwick's sincere contemplation of this sexist argument shows him to have had a more conservative disposition toward the representation of women than Mill. Nonetheless, because Sidgwick thought that not having distinct interests only neutralized part of the reason for enfranchising competent adults, it isn't clear that Sidgwick reaches a different conclusion than Mill on the matter. Indeed, although Sidgwick is disturbingly charitable to arguments for denying married women the vote, he never indicates that he takes them to be dispositive.⁸⁰

⁷⁴That is certainly not all that plural voting was to Mill, but it was part of his rationale for endorsing the practice.

⁷⁵For these concerns of Mill's see Gregory Conti, "Inegalitarian Inclusivity: A Reading of J. S. Mill's Mature Theory of Representation and Electoral Institutions in Context," *History of Political Thought* 42/1 (2021), 98–130, at 111–14. See also Mill, *CW*, 19: 466, 473–4, 478.

⁷⁶Sidgwick, *EP*, 364.

⁷⁷*Ibid.*, 366–7.

⁷⁸Mill, *CW*, 19: 479–81; Sidgwick, *EP*, 370.

⁷⁹Sidgwick, *EP*, 370.

⁸⁰Schultz, *Henry Sidgwick*, 499–502, argues that Sidgwick "favored women's suffrage" and notes his positive assessment of the suffragist Millicent Fawcett. He suggests that, though Sidgwick was more tentative

Apart from the exclusion of the destitute, the idea that some people had disqualified themselves from the franchise by behaving badly seems to have been the only justification for electoral exclusions that Sidgwick found persuasive.⁸¹ He supported the exclusion of “persons who have committed grave offenses of any kind,” those who have committed political crimes, and those engaged in legal forms of “disgraceful conduct,” such as “the keeping of a brothel.”⁸² The fact that Sidgwick suggested that these exclusions were justifiable “partly as a deterrent, partly as a security against” the “perversion” of the franchise further supports the reading that these exclusions were mostly directed toward social problems beyond democracy itself. For Sidgwick, the groups that could be most straightforwardly excluded from voting were those groups where the exclusion was not meant to protect democracy so much as to discourage other unwanted behaviors. At the same time, a word of caution is warranted here given Sidgwick’s thoughts on women. If Sidgwick was opposed to married women’s suffrage in *EP*, then it cannot straightforwardly be said that Sidgwick was more expansive than Mill on the matter of the franchise. Rather, we might say that Sidgwick had a less *elitist* conception of a just franchise than Mill, but also a more sexist and, overall, an equally restrictive one.

We can now turn to Sidgwick’s views on the weighting of the franchise. Sidgwick expressed sympathy for the practice of plural voting based on wealth, but ultimately ruled it out as an arrangement for a good society on the ground that it was unjust to the poor and unnecessary given his two criteria for disenfranchisement.⁸³ Sidgwick thought that plural voting would give “offense ... to the popular sentiment in favour of political equality.”⁸⁴ He also levied what he took to be more serious objections to plural voting. First, he correctly noted that traditional arguments for plural voting relied on a thick sociological account of the nature and composition of classes. The case for plural voting was based on the view that some classes would become permanent minorities under an equal franchise, and that these classes should have a disproportionate say because their interests were worth pursuing at least some of the time (if not most of the time). Yet Sidgwick argued that “it is impossible to divide societies into classes that remain equally distinct for all legislative purposes.”⁸⁵ Mill had been relatively happy to equate occupation with education, and education with a stable set of informed interests. Sidgwick, on the other hand, thought that these interests were much less stable. In Britain, he saw that on each major issue the relevant social cleavage was different, and the membership of each major coalition on these issues was heterogeneous.⁸⁶ (Notably, Sidgwick does not consider Mill’s suggestion that “occupation” might serve as a proxy

than his predecessor, “one can still find in Sidgwick’s early statements the roots of a fairly Millian view” on women.

⁸¹It has been suggested that, aside from age, destitution and insanity, only being “convicted of a crime” could justify disenfranchisement for Sidgwick, but this is slightly too strongly put, as we shall see. Havard, *Henry Sidgwick*, 159. One other minor exception: Sidgwick ponders disenfranchising employees of political parties and campaigns due to their having vested interests. Sidgwick, *EP*, 369–70.

⁸²Sidgwick, *EP*, 368. Like Mill, Sidgwick seems to have a somewhat inchoate sense that the sponsors of sex work were a particularly vile group deserving of fewer social and political rights. See Mill, *CW*, 18: 296.

⁸³Conti, “Inegalitarian Inclusivity,” 107; Mill, *CW*, 19: 476.

⁸⁴Sidgwick, *EP*, 372; Schultz, *Henry Sidgwick*, 585.

⁸⁵Sidgwick, *EP*, 372.

⁸⁶*Ibid.*, 372.

for education in the weighting of voting power.⁸⁷) Although this is not a moral argument against plural voting, it is a principled one that Sidgwick thought applied to all civilized societies. The complexity of interests in modern societies proved that the sociological theories that underpinned Victorian arguments for plural suffrage were wrong *as theories*, and not just as assessments of Britain in particular.

Second, Sidgwick argued that plural voting created both an “invidious appearance” of reinforcing natural inequality and a real risk “that the less prosperous majority may be sacrificed to the more prosperous minority.”⁸⁸ What is especially interesting about this second argument is that it took the real wrong of plural voting not to be that it made political power unequal across classes, but that it made political power *more unequal* than it already was.⁸⁹ Plural voting risked “aggravating” the preexisting “superiority” of the wealthy.⁹⁰ This is important because it hints at Sidgwick’s sense that elite control in politics did not require formally unequal electoral mechanics to be maintained. Such mechanics risked backfiring by undermining the legitimacy of political institutions and encouraging the abuse of the poor without promoting good legislation any more than could be achieved through formally egalitarian arrangements.

All things considered, Sidgwick endorsed a much narrower set of exclusions than the previous generation of utilitarians, and was among the liberals most enthusiastic about the expansion of the franchise. He was notably skeptical of the most common rationales offered for wider exclusions, and ultimately thought that only the threat of significant abuses of the vote could justify disenfranchisement, and that those likely to commit such abuses should be disenfranchised as much as a deterrent from criminality or disgrace as for the protection of the political process.

Given his debts to Mill, his sincere worries about the quality of legislation, and his sense that political civilization was intertwined with the cultivation of expertise, why did Sidgwick endorse such an expansive franchise? The answer has to do with his conception of political civilization, which emphasized the importance of knowledge about everyday life and the economic and industrial systems that had made society so much more complex. Sidgwick thought that these systems could not be completely understood by the upper classes alone, who tended to occupy a relatively small set of positions within the complex networks and institutions of industrial society. The universal franchise therefore had epistemic value: it made it more likely for good legislation to be passed because it gave more information to legislators on what sorts of policy would positively and negatively affect not only specific groups, but society as a whole. Knowledge of the common interest was not so much an aggregative property of elections, but an emergent perspective created by the balancing and combination of different inputs from different parts of society. The ultimate argument for representative government was that legislators “must have an insight ... into the actual relation of the

⁸⁷ Some scholars argue that if one reads Mill’s arguments for plural voting critically, one might conclude that education is itself merely a proxy for wealth. If this is the correct reading of Mill, then Sidgwick is explicitly departing from him on that score. See Conti, “Inegalitarian Inclusivity,” 114–15.

⁸⁸ Sidgwick, *EP*, 372–3.

⁸⁹ Bart Schultz also notes this in passing. Schultz, *Henry Sidgwick*, 586. Havard, *Henry Sidgwick*, 159, makes a similar point.

⁹⁰ Sidgwick, *EP*, 372–3.

laws to the social life of the community regulated; the manner in which they modify the conduct of the individuals whom they affect.” Legislatures ought therefore to “aim at including an adequate selection of persons who, with general ability, combine special experience in different departments of social life.”⁹¹

Here it is worth pausing to outline Sidgwick’s understanding of the common interest in more detail. The common interest refers to Sidgwick’s conception of “the general ‘good’ or ‘welfare,’” which “the majority of persons would agree to interpret ... to mean, in the last analysis, the happiness of the individual human beings who compose the community.”⁹² This individualistic conception of the common interest (or the common good) makes it seem necessarily aggregative, and in a purely philosophical sense it is: one realizes the common good by raising the happiness of each individual in the community as much as possible. In practice, however, Sidgwick thinks we have good reason to distinguish between the aggregation of interests that occurs via representative government and the common interest. There are two reasons for this. First, the “individuals” whose happiness defines the common good include people who are not and cannot be directly represented: the happiness of children and, more importantly for Sidgwick, future persons, count for the common good, so merely aggregating political preferences through an election fails to reliably track the common good.⁹³ Second, a majority of voters may have a preference for policies that would reduce the happiness of individuals and therefore damage the common good. In particular, Sidgwick thought that the maximization of individual happiness was only a coherent objective under certain background conditions, such as the maintenance of basic forms of social order and lawfulness, and the absence of arbitrary laws.⁹⁴ Taken together, these reasons mean that the common interest is concerned not just with the creation of a just (i.e. maximally happy) society now, but with the reproduction of this society and the conditions that make it possible over time.

Sidgwick’s views on the franchise were an attempt to renew a commitment to small-l liberalism in the face of rising unease about the tendency of representative government under a widening franchise to descend into demagoguery among moderate and Whig Liberals (many of whom would later become Unionists). Sidgwick was, and understood himself to be, a serious academic philosopher. His theory of the franchise was to some extent an attempt to work out, independently of political pressures, how things ought to be. Yet it was also notably written in the heat of a peculiar political moment where, even before the Home Rule crisis, the Liberal Party found its different factions increasingly at odds with one another.⁹⁵ This concern for the fate of liberalism and

⁹¹ *Ibid.*, 357.

⁹² *Ibid.*, 34.

⁹³ *Ibid.*, 34.

⁹⁴ *Ibid.*, 29–34.

⁹⁵ Jon Lawrence, *Speaking for the People: Party, Language and Popular Politics in England, 1867–1914* (Cambridge, 1998); Antony Taylor, “Post-Chartism: Metropolitan Perspectives on the Chartist Movement in Decline 1848–80,” in Matthew Cragoe and Antony Taylor, eds., *London Politics, 1760–1914* (Basingstoke, 2005), 75–96; James Owen, *Labour and the Caucus: Working-Class Radicalism and Organised Liberalism in England, 1868–1888* (Liverpool, 2014).

the Liberal Party entwined itself with his philosophical concerns. After the introduction of Gladstone's Home Rule Bill, Sidgwick would worry that if the Liberals could no longer be relied upon to defend the Union, then Unionists would need to engage with popular politics in order to preserve the political existence of a liberalism that was committed to its true principles of parliamentary government and equality under the law. In *EP*, Sidgwick tries to explain how the elite faction of liberal-minded intellectuals and economic elites that came to dominate the LUP could maintain their privileged position in representative government against the Liberal Party's working-class wing while also engaging with the masses in the ways that were necessary for both political success and good government. This attempt helps explain both his support for those who defected from Gladstone and his abandonment of expertise and order, and why he worried about their capacity to defend liberalism from the Liberal Party.

Sidgwick aligned himself with friends such as Edward Bowen in remaining committed to substantial political engagement between representatives and voters.⁹⁶ His sense that the "democratic" ship had sailed, that legitimate rule was now only possible through broad popular participation in elections and engagement between candidates and voters, was a more radical, but also more subtle, expression of a common theme in Liberal Unionist discourses on representative government. For Sidgwick, parliamentary government and (near) universal suffrage were pragmatic necessities for governing legitimately that political elites needed to accommodate themselves to. Like other Liberal Unionists who took this pragmatic attitude toward parliamentarism, such as James Fitzjames Stephen and Henry Maine, he thought that certain measures, especially strengthening the executive against Parliament as the body in control of the administrative state, could lessen the invidious effects of an increasingly democratic political system.⁹⁷ But unlike Maine and Stephen, who were deeply uncomfortable with the rise of a more democratic parliamentarism, Sidgwick did not regard this new political necessity as a purely negative development.⁹⁸ Rather, he took it to be an opportunity for representatives to become better rulers and to fully realize the promise of civilized government in modern society. This side of Sidgwick was more at home with the radical wing of liberalism, partly out of principle and partly, as we shall see, out of a worry about how liberal elites could gain enough political power to protect the Union, and their principles, from the threats they faced without simply surrendering Britain to the Conservatives.

⁹⁶W. E. Bowen, *Edward Bowen: A Memoir* (London, 1902), 177–8.

⁹⁷Sidgwick, *EP*, 401–3; Schultz, *Henry Sidgwick*, 596; James Fitzjames Stephen, letter to Emily Cunningham, 30 Jan. 1873, Stephen Papers, CUL, quoted in Gregory Conti, "How to Read James Fitzjames Stephen: Technocracy and Pluralism in a Misunderstood Victorian," *American Political Science Review* 115/3 (2021), 1034–47, at 1039; Henry Maine, *Popular Government* (New York, 1886), 115–16.

⁹⁸Conti, "How to Read James Fitzjames Stephen," 1036–9; Raymond Cocks, *Sir Henry Maine: A Study in Victorian Jurisprudence* (Cambridge, 1988), 138–40. William Lubenow claims that Maine was "able to bring ... Henry Sidgwick ... over to his views" on democracy through their shared commitment to Unionism. As the above discussion suggests, I think this assessment is mistaken, though Lubenow is right to point out that the two sorted out their views on democracy in tandem. Lubenow, *Liberal Intellectuals and Public Culture in Modern Britain*, 215.

Sidgwick on representative government: electoral schemes, expert rule and incentives for engagement

Sidgwick argued for the preservation of the SMP system in Britain, making the case for the value of territorially based electoral districts. He also argued that legislators should not be paid for their work, but should instead serve as unpaid government officials. Both of these arguments served to reintroduce expert rule into representative government without creating any formal educational or class hierarchies in the political process. Furthermore, they show Sidgwick to be deeply committed to incentivizing mass political engagement with elites, rather than an elitist who shied away from public-facing politics in the face of the new mass politics. Sidgwick understood that, in order to secure the political rule of the elites who defended the kind of liberalism that would later provide the basis for the LUP, they needed to engage with the groups that would actually put them in power. This view dovetailed with his commitment (later bolstered by his involvement with the LUP) to combining far-sighted expert rule with the epistemic advantages of broad popular participation in politics.

Sidgwick's defense of SMP was made in the context of the increasing popularity of PR among British intellectuals in the second half of the nineteenth century and the multiplication of proposals for realizing PR in Britain. The most famous of these was Thomas Hare's proposal, known as the Hare system, an exceedingly complicated scheme that involved the creation of national political constituencies for a list of representatives with a single-transferable-vote (STV) electoral system. The goal of the scheme was to produce a Parliament that accurately mirrored the attitudes, preferences, and interests of all British voters. The scheme also had the advantage of making it such that every voter had a representative in Parliament whom they had selected (or at least whom they were willing to rank on their list of candidates).⁹⁹ This avoided the problem that voters for losing parties in SMP constituencies would be stuck with a representative they had not voted for, and so would not be directly represented by anyone in Parliament. This scheme was particularly relevant to Sidgwick because it had been Mill's preferred PR scheme, and it had heavily influenced Mill's own argument for the adoption of PR/STV in Britain.¹⁰⁰ As with the franchise, Sidgwick took Mill to be the main proponent of the utilitarian view on electoral schemes in his time, and his discussion of electoral systems was motivated by his sense that Mill and Hare were mistaken. At the same time, his discussion understandably does not get into the details of Hare's scheme, nor does it venture into the specifics of Mill's argument for PR, though it noticeably takes a Millian perspective on democracy even in rejecting Mill's actual view.¹⁰¹

Sidgwick thought that SMP had three main advantages: (1) it encouraged elite engagement with, and guidance of, the masses in politics; (2) it produced political representatives with superior intellectual qualities; and (3) it reduced polarization. Advantage 1 was the most important to Sidgwick, and the most salient. Sidgwick

⁹⁹Thomas Hare, *A Treatise on the Election of Representatives, Parliamentary and Municipal* (London, 1859).

¹⁰⁰Mill, *CW*, 1: 284, 15: 591.

¹⁰¹On Sidgwick's "Millian rebuttal" of the Hare system, see Gregory Conti, *Parliament the Mirror of the Nation: Representation, Deliberation, and Democracy in Victorian Britain* (Cambridge, 2019), 337.

argued that PR risked fostering demagoguery by removing the reasons that elites used to have to educate and improve their intellectual inferiors. He suggested that the good governance that characterized political civilization could not be sustained if elites abdicated their mandate for political persuasion:

There is a danger of losing a valuable protection against demagoguery, if we remove the natural inducements which local divisions give for the more instructed part of the community to exercise their powers of persuasion on the less instructed. If the divisions are local, the wiser few in each locality, in order to carry the candidate of their choice, have to convince their neighbours, and thus the natural sociability springing from neighbourhood tends to become a channel of political education: but if an instructed minority were allowed to combine with others on their own intellectual level elsewhere, this valuable educative influence would tend to be lost. This consideration seems to me materially to reduce the probable efficacy of the representation of minorities as a prophylactic against the danger of pernicious class-legislation.¹⁰²

Sidgwick thought that SMP encouraged intellectual elites to engage politically with the more ignorant members of their community, persuading them to vote for those whom this wiser elite recognized as having good proposals and effective representative qualities.¹⁰³ SMP could enhance the electoral weight of the minority's intelligent preferences because it encouraged them to educate and convince the masses, not just the uneducated working class, but also the decently educated middle classes.¹⁰⁴ In his diary, he admitted to looking "with satisfaction" on "the extension of the franchise which is obliging [landowners] to argue before their labourers as an advocate before his jury."¹⁰⁵ This was not as mild an argument as it might seem; Sidgwick argued that political civilization was characterized by mass deference to the authority of experts, particularly scientific experts, on policy issues. Sidgwick defined authority as a human belief grounded in the view that that belief is "held by others with better knowledge than myself of the matters in question."¹⁰⁶ He claimed that authority's "place in determining the actual beliefs ... of ordinary educated persons, is not only very large, but tends to grow with the growth of science and civilisation, on account of the increasing specialisation in the pursuit of knowledge which is an inevitable accompaniment of this growth."¹⁰⁷ Political civilization's demand for knowledge of complex and specialized systems had produced a change not only in how knowledge was pursued, but also

¹⁰²Sidgwick, *EP*, 374–5.

¹⁰³For many Liberals, Gladstonians, and Unionists, a social relationship ought to connect rulers to ruled. Michael Bentley, *The Climax of Liberal Politics: British Liberalism in Theory and Practice, 1868–1918* (London, 1987), 50; D. W. Bebbington, *The Mind of Gladstone: Religion, Homer, and Politics* (Oxford, 2004), 301–5.

¹⁰⁴Liberal Unionism would indeed serve as a "rallying cry for missionary work in the constituencies." Hurst, *Joseph Chamberlain and Liberal Reunion*, 84.

¹⁰⁵Sidgwick, *Memoir*, 422–3.

¹⁰⁶Henry Sidgwick, "Authority, Scientific and Theological," paper read to the Synthetic Society, 24 Feb. 1899, printed in Appendix 2, in Sidgwick, *Memoir*, 608–15, at 608.

¹⁰⁷*Ibid.*, 609.

in the class of people whose knowledge was taken to be authoritative and politically important. The transition had been from an age of kings to an age of experts.

This potentially prominent role for intellectual elites in politics would be of great benefit to the more moderate factions within the Liberal Party, and later to the LUP, who dominated the British intelligentsia, especially at Oxford and Cambridge.¹⁰⁸ In seeking to secure the political conditions for the realization of this role, Sidgwick was, by extension, attempting to secure the political influence of the liberalism of the intelligentsia, against both more conservative and more radical alternatives. His advice on the cultivation of an electoral base would ensure its ability to resist Home Rule in Parliament. This was threatened by PR, which would have removed the reasons experts had to speak to the majority on political issues. Sidgwick's worry was not about a lack of deference to expertise, but rather about experts isolating themselves from the majority by forming an exclusive political coalition based around PR's national constituencies. The great advantage of SMP was that it preserved democracy while also incentivizing experts to rule using the tools of political influence and education. Sidgwick worried that a mass unsupervised by the intelligent few risked electing demagogues. For him, Gladstone and his radically transformed Liberal Party were further proof of this. Sidgwick wanted to generate an elite-driven consensus in politics, one which would simultaneously earn the confidence of the masses and advance the preferences of the wise for the preservation of the Union and the restoration of liberal values properly understood. SMP was a way for Sidgwick to carve out a space for expert rule without introducing any formal inequalities into the democratic process. Rather, SMP changed the incentives of elites in a way that made it more likely that they would choose to influence the majority rather than forming their own minority party.

This worry about the effects of PR points to a more general worry of Sidgwick's about the Unionist elite, which explains why he articulated his defense of SMP in the way he did. After all, SMP was already the status quo in Britain when he wrote *EP*, so why worry about the insularity that PR might breed? Sidgwick worried that the structure of parties and the high-mindedness of elites risked undermining their ability to win elections even if PR was not implemented. His defense of SMP was also meant to free candidates for Parliament from the restraints of partisanship, and MPs from the party whip, by placing them in direct deliberative relationships with their constituents, rather than simply positioning them as party mouthpieces in their constituencies. Partisanship, on his view, was as much a "force of resistance ... to the influence of enlightened and rational opinion" as demagoguery, especially in a two-party system, due to its interference with political deliberation.¹⁰⁹ This claim, made in his diary as part of a direct comment on the causes of the Home Rule crisis, is also found in *EP*. There, Sidgwick argued that two-party systems elevate partisanship to a value nearly as "exacting as patriotism," to the detriment of "intellectual convictions," which must be

¹⁰⁸The exact extent of their dominance is contested, though it is clear that they were disproportionately represented among the professoriate and the aristocracy. See John Roach, "Liberalism and the Victorian Intelligentsia," *Historical Journal* 13/1 (1957), 58–81; Lubenow, *Liberal Intellectuals and Public Culture in Modern Britain*, 208–11.

¹⁰⁹Sidgwick, *Memoir*, 442.

abandoned when called for by partisan sentiment.¹¹⁰ Parts of this criticism of partisanship were elaborated with his Liberal Unionist friend James Bryce, who was similarly appalled by the use of partisanship to encourage the abandonment of liberal principles within the Liberal Party.¹¹¹ Sidgwick thought that a member of the educated class had a duty to speak out “when and why he thinks his party in the wrong.”¹¹² Liberal Unionism was an instance of this criticism that was met with an uncompromising response from the mother party. But it was also an opportunity for elites to rekindle a direct relation with their constituents in order to secure a new and independent base of support for the LUP as it departed the Liberal fold. Here, Sidgwick was joining a major section of future Liberal Unionists who understood the party as being as much a rebellion against party discipline in favor of constituency politics as a party dedicated to defending the Union.¹¹³ The cause of Liberal Unionism was as much the correction of the structure of the Liberal Party as it was the rolling back of the pernicious policy commitments that came about as a result of the degeneration of this structure. Sidgwick’s criticism of party discipline and excessive partisanship is reflective both of a particular line of thinking characteristic of a major faction within the LUP and of an attempt to rearticulate the purpose of SMP in order to encourage and incentivize engagement between elites and the masses within territorial constituencies.¹¹⁴

These concerns are closely connected to advantage 2. Sidgwick worried that, under PR, “legislators will tend to represent either particular trades or professions, or particular religious sects or other associations, tending to be somewhat fanatical, of persons combining to effect special legislative ends.”¹¹⁵ This damaged the intellectual quality of representatives, who needed to have “breadth of view and variety of ideas” and be able to compare “different claims and judgments” and find compromises to “harmonise them as far as possible.”¹¹⁶ Just as PR encouraged elites to form a distinct minority party, it also favoured narrow-minded and fanatical candidates who were more appealing under PR than the greater intellects capable of engaging in true national politics. The irony of PR was that, by creating a national constituency, it amplified the electoral power of the most narrow, local, and exclusive parties. Here again, the concerns about partisanship and intellect that motivated many Liberal Unionists creep in. Sidgwick regarded Irish nationalists as fanatics, and like many members of the LUP when the Home Rule crisis arose, feared a religious massacre if England withdrew its protection from Ireland.¹¹⁷ Sidgwick’s worries about extreme partisanship in *EP* help explain his and other Liberal Unionists’ reactions to what they saw as an alarming turn toward

¹¹⁰Sidgwick, *EP*, 571; Schultz, *Henry Sidgwick*, 595–7.

¹¹¹Schultz, *Henry Sidgwick*, 596; Christopher Harvie, “Ideology and Home Rule: James Bryce, A. V. Dicey and Ireland, 1880–1887,” *English Historical Review* 91/359 (1976), 298–314.

¹¹²Sidgwick, *EP*, 577.

¹¹³Cawood, *The Liberal Unionist Party*, 112–13.

¹¹⁴Sidgwick’s twin desires to overthrow the two-party system and defend SMP would prove incompatible. Maurice Duverger, *Political Parties: Their Organization and Activity in the Modern State*, trans. Barbara North and Robert North (London, 1954).

¹¹⁵Sidgwick, *EP*, 375.

¹¹⁶*Ibid.*

¹¹⁷Like other Liberal Unionists, Sidgwick connected the Home Rule crisis to the rise of socialism and the “selfish ambition of leaders,” though in his case this connection seems to have been more suggestive than

extreme political positions that accompanied the conflicts in Ireland and the rise of an uncompromising radical wing in the Liberal Party.

The importance of public confidence is made apparent in advantage 3, as is his belief in the common interest, understood as the utilitarian value of the reproduction of a just society rather than the creation of the greatest happiness for the greatest number in the present. Sidgwick argued that PR would increase political polarization, and that this would have deleterious effects on representative government, justice, and the state. He claimed, "If the citizens are left to aggregate themselves into constituencies by free combination they are likely to form electoral bodies of a more uniform character, whether the combination is based upon identity of interests or similarity of opinions."¹¹⁸ What is notable here is the implication that there is something wrong, or at least nonideal, about representing a voluntary aggregation of interests. The problem, Sidgwick thought, was that this resulted in a pattern of representation that might accurately reflect the distribution of discrete interests in society, but did nothing to represent the common interest. Drawing on Mill, he argued that "it is the interest of the whole which includes justice to all the parts, at which the statesman should aim."¹¹⁹ The "interest of the whole" includes justice for its component parts but is not exhausted by this. Furthermore, legislators have an obligation to do justice to the interests and preferences of the groups that make up society, but they are not obligated to weigh each of these interests and preferences equally. Sidgwick explicitly rejects the notion that "good legislation is a kind of bargain struck between conflicting class-interests."¹²⁰ Though he was under no illusions about the frequent necessity of compromise for bringing about just legislation in practice, he wanted to avoid arguing, as Bentham had, that the common interest was simply the aggregation of private interests properly understood and policed. Representation should not aim simply to mirror and weigh these partial interests. Instead, it should use the knowledge of these interests as social information in the service of producing wise legislation that looked beyond partiality toward the reproduction of a just society.

The danger to be avoided was "the ultimate interests of the whole community" being "sacrificed to the real or apparent interests of the majority of the electors, either through ignorance or through selfishness and limitation of sympathy."¹²¹ The importance of avoiding a tyranny of the majority was not simply that it unduly damaged the interests of the minority, but also that it made it harder to preserve the conditions of political civilization. It is well known that Sidgwick was both a political insider himself and fond of thinking about politics from the perspective of the state.¹²² His worries about the ignorance, selfishness, and narrow-mindedness of the majority undermining the common interests of society embodied in the state was similar to J. F. Stephen's more

definite. Sidgwick, *Memoir*, 441–2. Other LUP-ers thought that Home Rule would lead to a nationalist-socialist uprising across the British Isles. See Lubenow, *Liberal Intellectuals and Public Culture in Modern Britain*, 212–13.

¹¹⁸Sidgwick, *EP*, 375.

¹¹⁹*Ibid.*, 371.

¹²⁰*Ibid.*

¹²¹*Ibid.*

¹²²Collini, "Sidgwick as Philosopher, Professor, and Public Moralist," 39–40; Bernard Williams, *Ethics and the Limits of Philosophy* (London, 1985), 108–9.

full-throated complaints about the hostility of the middle and lower classes to Britain's core institutions, including its empire.

This concern about the common interest coming under threat from interest aggregation or a tyrannical majority reflected the worries of many eventual Liberal Unionists about the destruction of a common regime of right in the name of either nationalist sentiment or majority whims. The goal of politics was not simply to accommodate these feelings when they became sufficiently strong, but rather to give these feelings their due and no more, which might mean denying their central demands. Gladstone and John Morley would argue that Home Rule was necessary because the Irish were so "alienated" that they would only obey "good laws" if they "proceed from a congenial and native source."¹²³ Sidgwick supported various liberal palliatives for Ireland, such as land reform, but saw more radical demands for the end of British rule there to be foolish and dangerous, contrary to the common interest.¹²⁴ To abandon this common good in favor of a sentiment demanding native rule for its own sake was a profound betrayal of liberalism.¹²⁵

Sidgwick's defense of SMP reflects a desire for expert rule without the formal political hierarchies that this kind of regime usually entails. He worried that inequalities tended "to become grievances," undermining confidence in the state.¹²⁶ He also worried, however, that without expert guidance, democracy would result in demagoguery, tyranny of the majority, and the abandonment of institutions that allowed political civilization to reproduce itself. As the Liberal Party seemed at risk of disintegrating under these noxious forces, he turned to electoral design as a way to incentivize elites to do their educational duty, form broad-minded coalitions led by the wise, and rule justly to defend the fundamental principles of a liberal order. We can now turn to a second dimension of his attempt to reintroduce expert rule into democracy—his argument against salaries for legislators.

Unelected officials? The House of Lords

Finally, two more components of Sidgwick's theory of representative government toe the Liberal Unionist party line and are worth discussing. Sidgwick followed the likes of Dicey in advocating for the preservation of the House of Lords as a check on the House of Commons, though he hoped the method of selection would someday change.¹²⁷ Instead of a chamber for the titled, he thought it should either be composed of individuals appointed by the executive on the basis of personal excellence and experience

¹²³ John Morley in *Hansard Parliamentary Debates* 304 (12 April 1886), 1348–9; 1353, 1357; William Gladstone in *Hansard Parliamentary Debates* 304 (8 April 1886), 1065. See also Alan O'Day, "Defending the Union: Parliamentary Opinions, 1869 and 1886," in D. George Boyce and Alan O'Day, eds., *Defenders of the Union: A Survey of British and Irish Unionism since 1801* (London, 2001), 90–111.

¹²⁴ For the palliatives see Sidgwick, *Memoir*, 438, 456–7, 461. He also, in a different context, supported reforms to the system of poor relief; see *ibid.*, 481.

¹²⁵ *Ibid.*, 448. His commentary on his friend Hall's disillusionment with the possibility of separatists governing Ireland in a manner consistent with liberalism is suggestive.

¹²⁶ Sidgwick, *EP*, 376.

¹²⁷ A. V. Dicey, "Unionists and the House of Lords," *National Review*, 24 Jan. 1895, 690–704.

in high office, or, ideally, become an elected chamber like the American Senate.¹²⁸ This view is notable as an attempt to make a consistent view out of the competing imperatives of liberal social reform and political success that would eventually become acute for the LUP upon its formation. Though its members castigated the Liberals for their opportunism and unprincipledness, the LUP was itself in a bind. As liberals, its members tended to disapprove of the House of Lords, seeing it as an institution of arbitrary class privilege.

Liberal Unionism had a much greater foothold in the Lords than it did in the Commons.¹²⁹ Indeed, without the Lords' veto, the LUP could not hope to defeat the Home Rule Bill.¹³⁰ Interestingly, Sidgwick does not pursue what would become the main LUP line in defending the existence of an upper chamber. Liberal Unionists tended to defend the Lords on the ground that it was the only parliamentary institution free from the diktat of party leaders.¹³¹ Thus the defense of bicameralism was folded into the critique of Gladstonian demagoguery via party discipline.¹³² The implication of this was that the permanence of appointments to the Lords freed its members from reliance on party mechanisms that had become indispensable for winning reelection. This view would tend to support reforms to the criteria for appointment to the upper chamber, rather than reforms targeting the mechanism of appointment itself.¹³³ Yet Sidgwick decisively preferred an elected "senate" (as he called the upper chamber) to an appointed one. His reasons for rejecting an appointed senate should by now be familiar:

But suppose that such a chamber has expressed its opinion and has not persuaded the public: then, surely, the sight of a handful of individuals, presuming on the score of their personal superiority to resist permanently the "will of a people" whom they are unable to convince, is likely to rouse a popular indignation and clamour, and to cause at least a dangerous strain on the constitution.¹³⁴

Sidgwick was caught between a desire to restrain partisan demagoguery with as many layers of enlightened expertise as possible, and a sense that good policy could only have good outcomes if it was regarded as legitimate by the expansive electorate at large. In this one important respect, in spite of his clear loyalty to the LUP, he drifted uncertainly between the two understandings of liberalism that characterized the Liberal/Liberal Unionist divide. Although he thought that liberalism was about the triumph of reason and an impartial regime of law and right over sentiment and identitarianism, he agreed

¹²⁸Sidgwick, *EP*, 444–5, 450; Schultz, *Henry Sidgwick*, 590.

¹²⁹Gregory D. Phillips, "The Whig Lords and Liberalism, 1886–1893," *Historical Journal* 24/1 (1981), 167–73. Of 183 Liberals in the Lords, 120 defected to the LUP. Cawood, *The Liberal Unionist Party*, 21.

¹³⁰Cawood, *The Liberal Unionist Party*, 96.

¹³¹Dicey, "Unionists and the House of Lords."

¹³²Cawood, *The Liberal Unionist Party*, 113–14.

¹³³Chamberlain eventually expressed a willingness to consider adding "an elective component to the House of Lords," but insisted that criticisms of the House, even as it was then composed, were merely attempts to excite Liberal ardor. Joseph Chamberlain, *Liberal Unionist Association Memoranda* 2/10 (1894), 2/11 (1894), quoted in Cawood, *The Liberal Unionist Party*, 127.

¹³⁴Sidgwick, *EP*, 450.

in one important way with the Gladstonian restatement of liberal ideals during the Home Rule debate. Consistent with his account of the relationship between utilitarian ethics and politics in *The Methods of Ethics*, he recognized that good law needs to come from a source that is recognized as legitimate by those subjected to it, and that this requirement is not a liberal concession to political realism, but itself a part of the liberal ideal.¹³⁵

That is not to say that Sidgwick abhorred alternatives. He was willing to countenance a selected senate, and he even admitted that the aristocratic method of selection currently in use in Britain had “a valuable power of resistance to dangerous popular impulses.”¹³⁶ Yet the conservative streak inherent in this statement has been overstated.¹³⁷ Although Sidgwick rejected the claim that co-nationality represented a rational ground for legitimacy in lawmaking, as Gladstone claimed it did in the case of Ireland, he clearly thought that democratic representativeness did. The elected senate was not a tolerable second best, it was the ideal.

Conclusion

Sidgwick's theory of representative government was crafted as both an explanation of liberal principles and an account of how liberals ought to pursue their political projects. It attempts to resolve a set of tensions internal to late Victorian liberalism that eventually resulted in the creation of the LUP.

It was a disagreement about the sources of legitimacy, rather than about representation itself, that was fundamental to the LUP's secession from the Liberals in Sidgwick's mind. Yet the LUP's composition at the time of its founding was not conducive to political success or popular legitimacy: all officers and no soldiers, and with little to say to potential new recruits, it risked failing to meet both the normative and the practical requirements for good rulers in a “political civilization.” The second half of *EP*, with its focus on political institutions, represents an attempt by a future member of the party to explain how liberals could reestablish this form of principled rule while meeting the demands of political legitimacy that many of those who opposed the Radical agenda dismissed. As such, it both explains what the liberal intellectuals who abandoned Gladstone thought they were doing, and anticipates (or, potentially, responds to) the main challenge that confronted the LUP.

The theory of representative government that resulted from Sidgwick's attempt to make sense of the liberal predicament was one that struggled to reconcile his more egalitarian tendencies with a potentially conflicting kind of liberal elitism. Interestingly, it is the dimension of Sidgwick's thought that is usually glossed as conservative that fed most directly into his inclusive theory of representation. He was wary of attempts to bring about political change over and against common morality and what Bentham's

¹³⁵ Henry Sidgwick, *The Methods of Ethics* (1877) (London, 1901), 18–22, 465–9.

¹³⁶ Sidgwick, *EP*, 11.

¹³⁷ Collini, Winch, and Burrow, *That Noble Science of Politics*, 293; Havard, *Henry Sidgwick*, 147, 160.

“Normal-Mensch” would accept.¹³⁸ He was generally nervous about political change, worrying that moral seriousness required one to be suspicious of the self-deceptions involved in political projects of the kind that tended to incite sentimentality and excitement.¹³⁹ Certainly, this caginess helped fuel his resistance to Home Rule, the ultimate leap into the unknown. Yet his worries about the acceptance of normal people were most relevant for the ways in which they pushed him to insist on the more democratic aspects of representative politics. Sidgwick was concerned that the LUP’s lack of engagement with ordinary people and mass constituencies would undermine their attempts to build a durable base of voters committed to supporting liberal policies and the Union. His political theory argued that Britain’s institutions of representative government presented an opportunity to foster engagement between elites and the masses that would result in genuine popular input on policies (at least at an abstract level) without putting those unfit to hold political office on an equal footing with those who were. He envisioned a government where an economic and intellectual elite retained control of the levers of power but were substantially influenced by the many. Sidgwick thought that the key to realizing this vision was more engagement between representatives (or candidates) and constituents, a nearly universal franchise, and institutional arrangements that privileged the wealthy or the well-funded in politics. Such an arrangement, he hoped, would secure the kind of liberalism he endorsed. It also offered a clear (if not entirely convincing) path forward for the LUP once it was founded.

The theory of representative government that resulted from these concerns is distinctly liberal in a way that is both strange and recognizable. The idea of intellectually talented political elites guiding the masses toward the best policy positions while remaining sensitive to their own input and accountable to them as voters probably reflects how many elites today envision an ideal liberal democracy. At the same time, Sidgwick’s political elitism has been outflanked by contemporary epistocrats, who have lost faith in the possibility of elites convincing the masses to adopt rational political positions (except perhaps under extremely specific conditions).¹⁴⁰ His more democratic tendencies have been similarly overrun by democrats who argue that true democracy demands radical social change. Wherever one’s own political sympathies lie, Sidgwick’s account of representative government appears as a thoughtful and urgent attempt to redirect what was once a fiery, if brittle, political movement amongst the liberal intelligentsia.

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¹³⁸ Collini, Winch, and Burrow, *That Noble Science of Politics*, 288. Havard, *Henry Sidgwick*, 136–40, offers a different gloss on Sidgwick’s conservatism; Sidgwick to Alfred Marshall (1871), Sidgwick Papers, Trinity College, Cambridge, Add. Ms.c.100.96.

¹³⁹ Collini, Winch, and Burrow, *That Noble Science of Politics*, 306.

¹⁴⁰ Jason Brennan, *Against Democracy* (Princeton, 2016).

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